

Court No. - 3

Case :- WRIT - C No. - 23239 of 2011

Petitioner :- Ajay Kumar

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Imran Ullah

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Amitava Lala, J.

Hon'ble Ashok Srivastava, J.

As prayed for by learned counsel appearing for the respondents, let it appear on 28th April, 2011 in the supplementary list of fresh cases to enable him to take instructions in the mean time.

Order Date :- 21.4.2011

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Mr. Mohd. Khalid, holding brief of Mr. Imranullah, learned counsel appearing for the petitioner, has contended that the citation issued against the petitioner was set aside by a Division bench of this Court on 31.1.2011 in Writ-C No. 1576 of 2011 (Ajay Kumar Vs. U.P. Power Corporation Ltd. And others) with liberty to the respondent to issue fresh certificate in accordance with law. The petitioner has filed an application but was not disposed of by the respondent-Corporation. Now fresh bill has been issued which is annexure – 7 for a sum of Rs. 81629/-. The petitioner is ready and willing to pay the same within one month.

Mr. Subhash Joshi, holding brief of Sri Rajesh Tripathi, learned counsel appearing for the respondent-Corporation has accepted the request of the petitioner with regard to the payment of bill.

Accordingly the writ petition is disposed of with the direction upon the petitioner to pay the bill, annexure -7, within one month from the date of obtaining certified copy of the order. No order is passed as to costs.

After payment of this bill if any dispute arises in future, it is open for the petitioner to approach Consumer Redressal Forum under clause 7.10 of U.P. Electricity Supply Code, 2001. If no other bill is raised, within one month after payment of the aforesaid bill by the petitioner, then the claim by the Corporation is to be treated as settled, fully and finally.

Order Date :- 6.5.2011

S.B.